

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Black	Team: Team # 3	CCRB Case #: 201105323	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/26/2011 5:00 PM	Location of Incident: outside of Sheep's Meadow of Central Park		18 Mo. SOL 10/26/2012		Precinct: 22
Date/Time CV Reported Tue, 04/26/2011 6:46 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 04/26/2011 6:46 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jesse Cohen	04044	946868	CPK PCT
2. POM Henry Chung	04015	946860	CPK PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jesse Cohen § 87(4-b) § 87(2)(g)	Abuse: PO Jesse Cohen questioned § 87(2)(b)	A . Substantiated

Case Summary

On April 26, 2011, § 87(2)(b) filed this complaint with the CCRB via its Call Processing System. On April 26, 2011, at approximately 5:00 p.m., § 87(2)(b) exited Sheep's Meadow in Central Park in Manhattan, when PO Jesse Cohen, assigned to the Central Park Precinct, approached him. The following allegations stemmed from this incident:

- **Allegation A: Abuse of Authority:** PO Jesse Cohen questioned § 87(2)(b) § 87(2)(g) Therefore, it is recommended that Allegation A be closed as **substantiated**.

- § 87(4-b) § 87(2)(g)

§ 87(2)(b) was presented with the option of mediating his complaint. However, he chose to have his case investigated.

§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)
§ 87(2)(b) *a* § 87(2)(b) -old, § 87(2)(b), Hispanic male.

CCRB Statement

§ 87(2)(b) provided an initial statement to the CCRB on April 27, 2011, and a phone statement on April 28, 2011 (Enc. 12). He was interviewed at the CCRB on May 10, 2011 (Enc. 13-16). § 87(2)(g)

On April 26, 2011, at approximately 2:00 PM, § 87(2)(b) went to Central Park to relax and enjoy the weather. He was wearing a white tee shirt, blue or black shorts, and white/blue sneakers. § 87(2)(b) did not recall specifically at which street he entered the park. He was not carrying any bags with him. He was not smoking anything, did not possess any drugs, was not playing loud music, fighting with anyone, or vending any items. § 87(2)(b) went to the park by himself and during his time there, only spoke in passing to two males whom he had never met. One male was playing a guitar for tips and another male § 87(2)(b) just spoke to about how nice the weather was. § 87(2)(b) explained that he walked around different areas of the park and would stand or sit there for a few minutes and then move again.

At some point during his walking inside Sheep's Meadow, he noticed an officer, identified through investigation as PO Jesse Cohen of the Central Park Precinct, in the bushes of the park hitting a vendor's bag with his baton. § 87(2)(b) believed that he and PO Cohen made eye contact at this point. § 87(2)(b) could not specify how far away he was from PO Cohen when this occurred. Later on just before § 87(2)(b) was going to leave the park, he witnessed PO Cohen and another officer, identified

thorough investigation as PO Henry Chung of the Central Park Precinct, stop and handcuff a male on his bike, which was near a fountain just outside the park.

At approximately 5:00 PM, § 87(2)(b) left Sheep's Meadow at West 66th Street. Once he exited the park, PO Cohen and PO Chung approached him. PO Cohen asked how he was and what he was doing there. § 87(2)(b) was specifically asked whether he was vending. § 87(2)(b) told them he was enjoying the weather and he was not vending anything. The officers then requested ID, which § 87(2)(b) provided to PO Cohen. § 87(2)(b) was asked whether the address on his ID was his current residence and he answered that it was not and has had another residence for a few years. PO Cohen told him that he should get his ID changed or else he could get in trouble for it. PO Cohen wrote down § 87(2)(b)'s information, returned his ID, and § 87(2)(b) left. He was not told why he was stopped nor was he given a stop, question, and frisk card.

NYPD Statements:

Subject Officer: PO JESSE COHEN

PO Jesse Cohen is a § 87(2)(b)-old, § 87(2)(b) white male. PO Cohen worked from 11:30 AM to 8:05 PM on April 26, 2011. He was assigned to the Grand Larceny Unit and did not have a partner. He was assigned to a marked scooter and was in uniform.

Memo Book

PO Cohen's memo book indicated that at 5:05 PM, there was one male stopped for larceny suspicion, § 87(2)(b) DOB § 87(2)(b). He was a black-Hispanic male, § 87(2)(b), with black hair, and brown eyes. There was no frisk and photo ID was provided. At 5:05 PM, there was one report prepared (Enc. 17-19).

Stop, Question, and Frisk Report

The Stop, Question, and Frisk Report indicated that the crime suspected was larceny. The duration of the stop was 3 minutes and it occurred at West 66th Street and West Drive at 5:05 PM. The circumstances leading to the stop were actions indicative of casing a victim or location, and actions indicative of acting as a lookout. There was no frisk or search. Additional factors were the area has a high incidence of reported offense of type under investigation, the time of day, day of week, season corresponding to reports of criminal activity, and the changing of direction at sight of officers (Enc. 20).

CCRB Statement

PO Cohen was interviewed at the CCRB on July 19, 2011 (Enc. 21-22).

On April 26, 2011, PO Cohen was on routine patrol on his scooter when he first observed § 87(2)(b) standing along the fence line inside Sheep's Meadow at Central Park. § 87(2)(b) was standing in one spot looking at people who were sunbathing and walking by him. PO Cohen did not believe they made eye contact at this time. He then went about his patrol. Approximately an hour later, PO Cohen had exited his scooter and was on foot. He was at the corner of the pathway leading into Sheep's Meadow, with another officer, PO Henry Chung. PO Cohen noticed that § 87(2)(b) was still in the same spot as an hour prior. On several occasions as PO Cohen was stationary at the corner, § 87(2)(b) looked at him to see what he was doing and would then look away and move a few steps. § 87(2)(b) was also watching people walk by him and people who were sitting. PO Cohen indicated that this observation lasted 10 minutes according to the stop and frisk report. He mentioned that there had been several incidents involving larceny in the park.

When § 87(2)(b) exited the park, PO Cohen approached him and asked if he could stop for a moment. PO Chung was with him. § 87(2)(b) complied and stopped. PO Cohen asked § 87(2)(b) how he was doing and his reason for being in the park. PO Cohen did not recall asking him whether he was vending. § 87(2)(b) provided an explanation, which PO Cohen could not specify at the time of his interview. However, PO Cohen was satisfied with the answer he was given at the time. PO Cohen explained to § 87(2)(b) why he was approached, citing that there had been numerous incidents where people have had personal belongings stolen inside Sheep's Meadow. § 87(2)(b) became upset that he was approached by the officers. PO Cohen asked for his ID which he provided. PO Cohen recorded § 87(2)(b)'s information and prepared a stop and frisk report. § 87(2)(b) was given back his ID and then left.

Subject Officer: PO HENRY CHUNG

PO Henry Chung is a § 87(2)(b)-old, § 87(2)(b), Asian male. PO Chung worked from 12:30 PM to 9:05 PM on April 26, 2011. He was assigned to the Grand Larceny Unit and did not have a partner. He was assigned to a scooter and was in uniform.

Memo Book

PO Chung did not have his memo book at the time of the interview. PO Chung agreed to fax the entries to the CCRB but did not. A message was left for him to do so with his command's roll call on August 19, 2012. However, as of the writing of this report, PO Chung has yet to provide his memo book entries for the date in question.

CCRB Statement

PO Chung was interviewed at the CCRB on August 12, 2011 (Enc. 23-24).

On April 26, 2011, at approximately 5:00 PM, PO Chung was writing a summons to an individual on the pedestrian pathway of Sheep's Meadow, located at Central Park West Drive and West 67th Street. PO Cohen assisted PO Chung. PO Cohen then informed PO Chung that he had observed an individual, later identified as § 87(2)(b) acting suspicious and walking back and forth in the same location for an extended period of time. PO Cohen believed that he may be casing the area. PO Chung indicated that he had seen § 87(2)(b) earlier in the day, but did not make the observations that PO Cohen had. PO Chung also explained that they are part of the larceny unit which focuses on patrolling the area for robberies and casing of the area which are constant problems within the park.

PO Chung was finishing his summons record as PO Cohen went to approach § 87(2)(b) who was approximately 15 yards away and made a left in the southern direction. PO Chung did not go over to them immediately, but then heard § 87(2)(b) start to talk loudly, asking why he was stopped. PO Chung walked over to them to back up PO Cohen. He did not specifically interact with § 87(2)(b). PO Cohen explained to § 87(2)(b) why he was approached, citing that he seemed to be casing the location and they have problems with larceny inside the park. § 87(2)(b) was upset, saying he should be able to be in the park. PO Cohen again explained to him his reason for approaching. § 87(2)(b) then asked PO Cohen for his name and shield number, which he provided. PO Cohen then requested § 87(2)(b)'s information. PO Chung did not see whether § 87(2)(b) had his ID or whether a stop and frisk report was prepared. Once PO Cohen had the information, § 87(2)(b) left. PO Cohen briefly explained to PO Chung what had happened and they both went back on patrol.

NYPD Documents

Roll Call

The Central Park Precinct roll call indicated that PO Cohen and PO Chung were both assigned to the Grand Larceny Unit (Enc. 26).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 19, 2011, with regard to the incident (Enc. 27).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (Enc. 10).

Subject Officer CCRB History

- PO Cohen and PO Chung have both been members of the service for 3 years and there are no substantiated CCRB allegations against them (Enc. 8-9).

Conclusion

Identification of Subject Officer

PO Cohen admitted to interacting with § 87(2)(b) during his CCRB statement.

Investigative Findings and Recommendations

Allegation A: PO Jesse Cohen questioned § 87(2)(b)

It is undisputed that PO Cohen approached § 87(2)(b) upon his exiting Sheep's Meadow in Central Park. § 87(2)(b) stated that PO Cohen questioned him about vending illegally in the area, which PO Cohen neither admitted nor denied. PO Cohen explained that the area inside Central Park had recently been prone to larceny crimes. § 87(2)(b)'s actions, such as looking away from the officers, as well as his length of time in one specific spot in the park, led PO Cohen to believe that § 87(2)(b) may have been casing the area. PO Cohen then approached § 87(2)(b) in order to ask him his purpose in the park. PO Cohen was assigned to the Grand Larceny Unit, specifically looking for individuals who raised suspicion for crimes of theft and casing of the area. § 87(2)(b) admitted to being inside the park for several hours, and even standing in the same spot for long periods of time. According to PO Cohen, § 87(2)(b)'s actions, coupled with his length of time in the park watching people, raised his suspicion that § 87(2)(b) was casing the location.

To approach and question a person regarding a crime, an officer must have founded suspicion that criminality is afoot. *People v. Hollman*, 79 N.Y.2d 181 (1992). Founded suspicion must be based on an individual's observed suspicious behavior, not merely based on the individual's presence in a high crime area. *People v. Hampton*, 200 A.D.2d 466 (1994).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

it is recommended that allegation A be closed as **substantiated**.

§ 87(4-b) § 87(2)(g)

[REDACTED]

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date